

26STCV17594 26STCV17594

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV17594 Hearing Date: August 28, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:34 PM on August 27, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 27, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

alleges that he was a tenant of Defendant Garibay, and also performed work for Garibay in exchange for a modest amount of weekly pay and a reduction in rent. Garibay allegedly did not repair the leaking roof. When Plaintiff declined to perform work for Garibay at a different location, Garibay engaged in retaliatory conduct. Apparently, Plaintiff

was a subtenant of Garibay as a master tenant, as the landlord, Volk Properties, LLC, allegedly wrongfully evicted Plaintiff by physically excluding him from his unit.

Defendant

Volk Properties LLC demurs to the Complaint and moves to strike portions thereof.

TENTATIVE RULING

Defendant

Volk Properties LLC's demurrer to the entire Complaint on the ground of uncertainty is OVERRULED. The demurrer to the first through sixth and eighth through tenth causes of action is OVERRULED. The demurrer to the seventh cause of action is SUSTAINED with leave to amend.

The motion

to strike is GRANTED with leave to amend as to the punitive damage allegations at Page 13, Paragraph 60, Lines 13-16; Page 15, Paragraph 70, Lines 19-21, and DENIED as to the punitive damage allegations at Pages 18, Paragraph 86, Lines 19-24; Page 24, Paragraph 117, Lines 810; and Page 27, Prayer No. 5, Lines 23-24. The motion to strike is MOOT as to Page 22, Paragraph 109, Lines 23-25.

Plaintiff

is given 30 days' leave to amend.

ANALYSIS

Demurrer

Request For Judicial Notice

Defendant

requests that the Court take judicial notice of the following:

1. Order to Comply issued by City of Los Angeles dated March 15, 2025, re vacated the real property located at 406 W. Adams Boulevard, Los Angeles, California 90016.
2. The Courts Minute Order in Los Angeles Supreme

Court Case No. 25STCV03675, Volk Properties v. Garibay, dated May 15, 2025.

3. Plaintiff Volk Properties Verified UD Complaint
in Los Angeles County Superior Court Case No. 25STUD03675 ("UD Action").

4. Prejudgment Claim of Right to Possession
filed by CRUZ LAGUNES MEZA ON June 2, 2025 in the UD Action.

5. Plaintiffs Opposition to CRUZ LAGUNES MEZA'S
Prejudgment Claim of Right to Possession filed on June 24, 2025 in the UD Action.

Requests

Nos. 1 – 5 are GRANTED per Evid. Code § 452(d)(court records).

Plaintiff

requests that the Court take judicial notice of the following:

1. Unlawful

Detainer Complaint LASC No. 25STUD01047.

2. Prejudgment

Claim of Right to Possession filed February 25, 2025 on UD Case No. 25STUD01047.

Requests

Nos. 1 and 2 are GRANTED per Evid. Code § 452(d)(court records).

Meet and Confer

The

Declaration of Gary Schwartz reflects that Plaintiff's counsel did not respond to
meet and confer efforts. This satisfies Code Civ. Proc. § 430.41(a)(3)(b).

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses
the points which the Court deems to be material to the disposition of this motion.

Defendant

Volk Properties LLC demurs to the Complaint as follows:

1. Entire
Complaint.

Defendant

argues that the allegations in the Complaint are so devoid of real factual content as to each of the causes of action demurrer to, as against Defendant Volk. This is especially true since Plaintiff admits that his alleged residential tenancy was with Defendant Garibay, not Volk. It is, therefore, impossible for Defendant to comprehend the allegations therein and intelligently respond to them. Plaintiff fails to factually substantiate its boilerplate claims

of what acts Defendant Volk actually did that renders it potentially liable to Plaintiff specifically, and how has Plaintiff actually been damaged by acts of Volk when Volk was not Plaintiffs purported landlord.

A demurrer for uncertainty is properly sustained

where the complaint is so vague or uncertain that the defendant cannot reasonably respond, i.e., when the defendant cannot determine what issues must be admitted or denied, or what counts are directed against the defendant. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616; *Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial*, supra, ¶ 7:85.) Demurrers for uncertainty are disfavored and strictly construed "because ambiguities can reasonably be clarified under modern rules of discovery." (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.)

Here, the Complaint

clearly identifies the allegations against demurring Defendant Volk Properties LLC at ¶¶ 23, 25, 26, 27, 28, 29, 31, 32, 34, 36, 39, 40, 41, 42, 43, 53, 54, 55, seventh cause of action. Whether or not these allegations are sufficient to state causes of action against Defendant Volk is a different inquiry than whether Volk can ascertain the allegations against it. This argument against the entire Complaint is not persuasive.

The

demurrer to the entire Complaint on the ground of uncertainty is **OVERRULED**.

2. First

Cause of Action (Financial Elder Abuse); Second Cause of Action (Elder Abuse – Reckless Neglect and Depreciation); Third Cause of Action (Breach of Covenant of Quiet Enjoyment); Fourth Cause of Action (Violation of Civil Code § 789.3); Fifth Cause of Action (Negligence); Sixth Cause of Action (Nuisance); Eighth Cause of Action (Trespass to Chattels); Ninth Cause of Action (Intentional Infliction of Emotional Distress);

and Tenth Cause of Action (Negligent Infliction of Emotional Distress).

Defendant

argues that Plaintiff admits (§12) that his tenancy agreement to reside at the Property was solely with Defendant Garibay and not with Defendant Volk. Accordingly, the causes of action that in one form or another relate to claims for damages based on violations of the Lease relationship relate to Defendant Garibay. Defendant Volk had no privity of Contract (oral residential lease Plaintiff claims he has with Defendant Garibay) with Plaintiff. Therefore, Plaintiff has no right to claim damages against Defendant Volk relating to his purported Lease with Defendant Garibay.

Defendant's

argument is painted with a broad brush but does not specifically address the individual elements of each of the first through sixth and eighth through tenth causes of action, so the Court will not do so either. A demurrer may not be brought as to a portion of a cause of action, and there is at least one pleaded theory whereby Defendant Volk would owe a duty not to engage in self-help eviction which would leave Plaintiff unable to access his belongings. Civil Code § 789.3—which is the basis of the fourth cause of action—applies to any occupant:

(a) A landlord shall not with intent to terminate the occupancy under any lease or other tenancy or estate at will, however created, of property used by a tenant as his residence willfully cause, directly or indirectly, the interruption or termination of any utility service furnished the tenant, including, but not limited to, water, heat, light, electricity, gas, telephone, elevator, or refrigeration, whether or not the utility service is under the control of the landlord.

(b) In addition, a landlord shall not, with intent to terminate the occupancy under any lease or other tenancy or estate at will, however created, of property used by a tenant as his or her residence, willfully:

(1) Prevent the tenant from gaining reasonable access to the property by changing the locks or using a bootlock or by any other similar method or device;

(2) Remove outside doors or windows; or

(3) Remove from the premises the tenant's personal property, the furnishings, or any other items without the prior written consent of the tenant,

except when done pursuant to the procedure set forth in Chapter 5 (commencing with Section 1980) of Title 5 of Part 4 of Division 3.

Nothing in this subdivision shall be construed to prevent the lawful eviction of a tenant by appropriate legal authorities, nor shall anything in this subdivision apply to occupancies defined by subdivision (b) of Section 1940.

(c) Any landlord who violates this section shall be liable to the tenant in a civil action for all of the following:

(1) Actual damages of the tenant.

(2) An amount not to exceed one hundred dollars (\$100) for each day or part thereof the landlord remains in violation of this section. In determining the amount of such award, the court shall consider proof of such matters as justice may require; however, in no event shall less than two hundred fifty dollars (\$250) be awarded for each separate cause of action. Subsequent or repeated violations, which are not committed contemporaneously with the initial violation, shall be treated as separate causes of action and shall be subject to a separate award of damages.

(d) In any action under subdivision (c) the court shall award reasonable attorney's fees to the prevailing party. In any such action the tenant may seek appropriate injunctive relief to prevent continuing or further violation of the provisions of this section during the pendency of the action. The remedy provided by this section is not exclusive and shall not preclude the tenant from pursuing any other remedy which the tenant may have under any other provision of law.

(Civ. Code § 789.3 [bold emphasis and underlining added].)

An analysis of the statutory language reveals that Civil Code section 789.3 applies to plaintiff's occupancy.

First, and most importantly, plaintiff falls within the statute's broad reach. Painting with a broad brush, the statute forbids landlords' use of self-help "to terminate the occupancy under any lease or other tenancy or estate at will, however created, of property used by a tenant as his or her residence" by means of changing the locks, removing outside doors or windows, or removing the resident's personal property. (Civ. Code, § 789.3, subd. (b), italics

added.) Plaintiff is a named “occupant” under the extension of the lease at issue here. And as our high court has explained in connection with subdivision (c) of the statute, the word “‘tenant’ as used in the penalty formula of section 789.3 refers to all the occupants of a rental unit.” (Kinney v. Vaccari (1980) 27 Cal.3d 348, 358 [165 Cal. Rptr. 787, 612 P.2d 877].)

(Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1050-51 [bold emphasis added].)

In the case of a sublease, the sublessee is considered to have a portion of the tenant’s estate: “In contrast to an assignment, a sublease is a transfer of only a portion of the tenant’s estate, with the latter retaining a reversionary interest. (Citation omitted.)” (Valley Invs. v. Bancamerica Commercial Corp. (2001) 88 Cal.App.4th 816, 823.)

Thus, Defendant’s blanket argument that it has no liability whatsoever under any cause of action because there is no privity between Defendant Volk and Plaintiff is not persuasive. As noted above, because Defendant did not bother to address each cause of action individually, neither will the Court.

The demurrer to the first through sixth and eighth through tenth causes of action is OVERRULED.

2. Seventh Cause of Action (Fraud and Concealment).

Defendant argues that Plaintiff appeared on June 2, 2025 in the UD action by filing a prejudgment right to possession, and thus Plaintiff and his counsel—who represents him in this action—were aware of the fact that the property was in unsafe, uninhabitable condition. Plaintiff has admitted that he had no tenancy relationship with Defendant Volk. The bottom line is nothing about the UD case was concealed from Mr. Meza and he filed an Appearance in that Action— his claim for right to possession was not granted by the Court. Therefore, this cause of action fails on its face based on Plaintiff’s filing in the UD Action. Mr. Meza, for safety reasons wouldn’t, even if he was a rightful tenant of Mr. Garibay, be allowed on the Property post May 25, 2025 due to safety conditions of the Property.

The

seventh cause of action alleges:

104. Defendants,

and each of them, intentionally concealed, suppressed, and withheld material facts from Plaintiff. Specifically, Defendants intentionally concealed the filing of the parallel Unlawful Detainer action (Case No. 25STUD03675) and the subsequent scheduling of the May 15, 2025 Ex Parte Application for a Temporary Restraining Order.

105. Defendants

had a strict legal duty to disclose the existence of this parallel litigation and the Ex Parte hearing to Plaintiff because:

a. Plaintiff

had already formally entered a public appearance in the primary case (Case No. 25STUD01047) by filing a Prejudgment Claim of Right to Possession on February 25, 2025, placing Defendants on notice of his claim to tenancy;

b. Defendants

had received explicit, direct written notice from Plaintiff's legal counsel on May 13, 2025, confirming formal legal representation regarding his occupancy; and

c. Defendants

possessed exclusive knowledge of their unserved parallel lawsuit and intended to seek a court order that directly threatened to upend Plaintiff's living conditions, utility services, and access to his home.

106. Defendants

intentionally concealed and suppressed this information with the fraudulent intent to deceive Plaintiff, prevent him and his counsel from appearing in court to oppose the application, and thereby secure an uncontested "repair order" under false pretenses to execute a physical lockout.

107. Plaintiff

was completely unaware of the concealed facts, and reasonably relied upon the presumption that his tenancy rights would only be litigated or altered through standard, noticed legal proceedings under the initial action. Had Plaintiff been notified of the parallel filing and the Ex Parte hearing, he would have immediately appeared with counsel to protect his interests, prevent the utility disconnections, and avert his displacement.

108. As a direct

and proximate result of Defendants' concealment and fraud, Plaintiff was ambushed, stripped of his constitutional right to due process, driven from his dwelling of twelve (12) years, and sustained severe general, special, and property damages in an amount to be determined at trial.

Defendant

does not raise the potential litigation privilege, so the Court will not address it. Defendant also focuses on Plaintiff's appearance in the first UD case, when Plaintiff is complaining about the second UD case.

[T]he elements of a cause of action for fraud based

on concealment are: " '(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. [Citation.]' [Citation.]" (Citation omitted.)

(Kaldenbach v. Mutual of Omaha Life Ins. Co.
(2009) 178 Cal.App.4th 830, 850.)

In this regard,
Plaintiff alleges:

27. On May

15, 2025, a mere 48 hours after receiving explicit written notice that Mr. Meza was represented by counsel, Volk Properties aggressively capitalized on the secrecy of its unserved parallel lawsuit. Volk Properties rushed into the Superior Court and brought an Ex Parte Application for a Temporary Restraining Order and Order to Show Cause within the Second UD Action (Case No. 25STUD03675)—deliberately failing to notify Mr. Meza or his counsel of the hearing.

28. On May

15, 2025, completely unaware of the hearing, Mr. Meza was deprived of his day in court. The Court issued an Ex Parte Minute Order granting Volk Properties permission to execute city-mandated structural repairs, ordering Defendant Garibay to temporarily

evacuate the large building on the lot and keep all equipment, persons, and cars 35 feet away from the building zone. The order explicitly directed that utilities were not to be shut off any longer than absolutely necessary for the repairs.

29. On or about May 21, 2025, Volk Properties weaponized the Ex Parte repair order, utilizing it as an extrajudicial vehicle to execute an illegal self-help eviction. Volk Properties and/or its construction agents entered the lot, severed the electrical power lines, shut off the gas and water services to Mr. Meza's unit, and placed heavy padlocks on the front perimeter entry gates, completely blocking his access.

While the foregoing allegations may constitute a basis for setting aside the order on the ground of violation of due process (lack of notice), Plaintiff does not plead out-of-pocket damage incurred on reliance of the concealed fact.

We acknowledge it is not enough for the complaint to allege damage was suffered. The fraud plaintiff must also allege his damages were caused by the actions he took in reliance on the defendant's misrepresentations. (Citation omitted.) " 'Assuming ... a claimant's reliance on the actionable misrepresentation, no liability attaches if the damages sustained were otherwise inevitable or due to unrelated causes.' [Citation.]" (Citation omitted.) If the defrauded plaintiff would have suffered the alleged damage even in the absence of the fraudulent inducement, causation cannot be alleged and a fraud cause of action cannot be sustained. (Citation omitted.)

(Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1064.)

[Gray v. Don Miller & Associates, Inc. (1984) 35 Cal.3d 498] holds that a defrauded party may recoup his out-of-pocket losses and expenditures in reliance on the fraud, but he may not recover benefit-of-the-bargain damages (i.e., damages placing him in the economic position he would have occupied had the representation been true), at least where the recovery is not premised on a specific property actually acquired by the defrauded party.

(Kenly v. Ukegawa (1993) 16 Cal.App.4th 49, 54.)

The demurrer to the seventh cause of action is SUSTAINED with leave to amend.

Motion To Strike

Meet and Confer

The

Declaration of Gary Schwartz reflects that Plaintiff's counsel did not respond to meet and confer efforts. This satisfies Code Civ. Proc. § 435.5(a)(3)(b).

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendant

Volk Properties LLC moves to strike the following portions of the Complaint on the ground that there are insufficient facts pled to support the imposition of punitive damages.

1. Page 13, Paragraph 60, Lines 13-16,

which states "Defendants conduct constituted recklessness, oppression, fraud, and malice in the commission of the financial elder abuse, and Plaintiff is entitled to recover punitive and exemplary damages pursuant to California Welfare and Institutions Code § 15657.5 and California Civil Code § 3294."

GRANTED

with leave to amend.

There

are insufficient allegations of malice, oppression or fraud against Defendant Volk Properties for purposes of the imposition of punitive damages. The allegation that Volk acted "in conjunction with" Garibay is factually insufficient. Also, the allegation that Volk "weaponized the secrecy of this Ex Parte repair order" (Complaint, ¶ 55) raises obvious litigation privilege[1] issues which would preclude the imposition of punitive damages.

Civil Code § 3294(a) provides:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant

has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant."

Civil Code § 3294(c) defines malice, oppression and fraud:

(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

To withstand a motion to strike punitive damages allegations, the complaint must set forth facts supporting a claim for punitive damages:

The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. (Citation omitted.) Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.

Grieves v. Superior Court (Fox) (1984)
157 Cal.App.3d 159, 166 [emphasis added].)

See also Clauson v. Superior Court (Pedus Services, Inc.) (1998) 67 Cal.App.4th 1253, 1255 ("[T]o survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.")

2. Page 15, Paragraph 70, Lines 19-21,
which states "Defendants conduct was reckless, oppressive, fraudulent, and malicious

in the commission of the physical elder neglect, and Plaintiff is entitled to recover punitive and exemplary damages pursuant to California Welfare and Institutions Code § 15657(b) and California Civil Code § 3294."

GRANTED

with leave to amend.

See

above at 1.

3. Pages 18, Paragraph 86, Lines 19-24

which states "Defendants acts were knowing, intentional, willful, and malicious,, performed with full knowledge of the severe discomfort, distress, anguish, and homelessness such acts would inflict upon an impoverished 79 year old senior citizen, and were done in conscious disregard of Plaintiffs statutory rights. Plaintiff is therefore entitled to exemplary damages in a sum adequate to punish and make an example of Defendants."

DENIED.

As

discussed above re: the demurrer, Civil Code § 789.3 provides a basis of liability against Defendant Volk. Plaintiff sufficiently alleges that Volk acted with malice or oppression as those terms are defined in Civil Code § 3294(c)(1) & (2).

4. Page 22, Paragraph 109, Lines 23-25,

which states "Defendants' fraudulent concealment was willful, malicious, and designed to intentionally exploit an impoverished senior citizen. Plaintiff is therefore entitled to an award of punitive damages pursuant to California Civil Code §3294."

MOOT

given the ruling on the demurrer to the seventh cause of action.

5. Page 24, Paragraph 117, Lines 810,

which states "Defendants acted with conscious disregard for Plaintiff's property rights and with an oppressive intent to cause him financial harm and distress, entitling Plaintiff to punitive damages under California Civil Code § 3294."

DENIED.

There

are sufficient allegations against Volk that by permanently board up and nail heavy wooden barriers over Plaintiff's unit doors, Defendant interfered with Plaintiff's possession of his personal property with malice or oppression as those terms are defined in Civil Code § 3294(c)(1) & (2).

Trespass to chattel "lies where an intentional interference with the possession of personal property has proximately caused injury." (Citation omitted.)

(Levy v. Only Cremations for Pets, Inc. (2020) 57 Cal.App.5th 203, 216.)

6. Page 27, Prayer No. 5, Lines 23-24, which states "For exemplary and punitive damages in an amount to be determined at trial pursuant to California Civil Code § 3294 and California Welfare and Institutions Code § 15657.5."

DENIED.

As

discussed above, there are sufficient allegations to support the general prayer for punitive damages against Defendant Volk.

Plaintiff

is given 30 days' leave to amend.

[1]

Plaintiff first asserts the litigation privilege does not apply because the complaint is based on defendants' breaches of duties of disclosure and truthfulness. However, the litigation privilege extends to fraudulent statements, even when made to a court, if they were made in furtherance of litigation. (Citation omitted.) "The "furtherance" requirement was never intended as a test of a participant's motives, morals, ethics or intent." (Citations omitted.) While plaintiff highlights statutes that require personal representatives and their attorneys to act ethically and to truthfully disclose all material facts, courts have held that the litigation privilege applies to probate matters, including cases in which the relevant communication involves forgery or falsification of documents, such as the presentation for probate of a forged will. (Citation omitted.)

(Herterich v. Peltner (2018) 20 Cal. App.
5th 1132, 1141 [bold emphasis added].)